

CO.2 Permit Application Checklist

The land approvals that gate a Colorado build, the local building permit if one exists, and the state electrical and plumbing permits that exist either way — in the order you have to work them.

Before you use this document

This is a process reference, not legal advice. Colorado adopts no statewide residential building code: each county and each municipality decides for itself whether to require a building permit and which code edition to enforce, and a few counties require no building permit at all. Electrical and plumbing run on a separate, statewide track. Confirm every item with the office that will actually issue it before you rely on it.

THE ORDER MATTERS MORE THAN THE PAPERWORK

In most states you start at the building department. In Colorado you start at the water, because the answer can be "this parcel cannot have a house on it." DWR's own page warns that "*review of complete applications may take up to **49 days***" — before a driller is scheduled. Septic runs on its own clock through local public health, needs a site evaluation before the permit, and cannot be used until a final inspection passes. Both commonly have to be resolved before a building department will issue anything, and neither depends on whether your county has a building code at all. So: **1. Water** — well permit or tap commitment. **2. Wastewater** — OWTS permit or sewer tap. **3. Access and address.** **4. The permits** — local building permit if one is required, and the state trade permits, which are required either way. Items 1 to 3 are the long poles; item 4 is where everyone starts.

1. WATER — THE PERMIT THAT DECIDES WHETHER YOU CAN BUILD

Colorado water law is prior-appropriation law: a well is a water right, not a utility connection. Small residential wells escape adjudication as "exempt" wells — inside limits narrower than most land buyers assume, and the limits turn on acreage.

The 35-acre line — the single most expensive thing to learn late

Under C.R.S. 37-92-602(3)(b)(II)(A) the state engineer presumes no injury to other water rights — which is what lets the permit issue — where the well is **"the only well on a residential site, which well will be used solely for ordinary household purposes inside a single-family dwelling and will not be used for irrigation"**, or is **"the only well on a tract of land of thirty-five acres or more"** used for the fuller list of purposes, or is the only well on a qualifying cluster-development lot.

Read plainly: on a parcel **under 35 acres** a new exempt well is typically **household use inside the house only — no lawn, no garden irrigation, no livestock**. At **35 acres or more** you can get the wider permit: household use for up to three dwellings, fire protection, watering poultry and livestock, and irrigation of up to one acre of gardens and lawns — all capped at **fifteen gallons per minute** (37-92-602(1)(b)). People buy five-acre parcels planning an orchard and find out afterwards. Read the permit's allowed-uses page before you close on land.

Two further gates. *Designated groundwater basins* are carved out of the exempt-well article altogether (37-92-602(1)(a)) and run under their own Ground Water Commission rules — much of eastern Colorado sits in one, and a new small-capacity permit there is a different application with different odds. And in a *subdivision* approved on or after June 1, 1972 whose water-supply plan the state engineer never recommended for approval, *"the cumulative effect of all such wells in the subdivision shall be considered in determining material injury"* (37-92-602(3)(b)(III)) — meaning your neighbors' wells count against yours. Neither of these is a reason to give up; both are reasons to ask DWR before you buy.

W1: Water supply

	Item	Date	Notes / who confirmed
☐	Determined the water source: exempt well / augmented well / municipal or district tap / cistern with hauled water Source: _____		
☐	Parcel acreage confirmed against the 35-acre line, and the allowed uses you will actually get written down Acres: _____ Uses allowed: _____		
☐	Checked whether the parcel sits in a Designated Basin or the Denver Basin (different rules and forms), or in a subdivision whose water-supply plan was never recommended for approval (cumulative-effect review) — dwr.colorado.gov , Well Permitting		

W1: Water supply

	Item	Date	Notes / who confirmed
☐	Well permit application filed with DWR — allow up to 49 days for review of a complete application Filed: _____ Permit #: _____		
☐	If a tap instead: written will-serve and the tap fee in writing. If a well: licensed well construction contractor engaged, with construction and pump records to be filed with DWR Driller / provider: _____		
☐	Electrical permit for the well pump wiring planned — the state publishes a "Requirements for Well Wiring" handout and a separate Well Water Installer permit type		

C.R.S. 37-92-602(1)(a), (1)(b), (3)(a)(II), (3)(b)(II)(A), (3)(b)(III); dwr.colorado.gov Well Permitting (49-day review; applications by email with fees paid online; Beginner's Guide to Well Permits). The statutory application fees are one hundred dollars under subsection (3)(b) and sixty dollars under (3)(c) (37-92-602(3)(a)(II)) — confirm against DWR's current fee schedule before you send payment. Read August 2026.

2. WASTEWATER — A LOCAL PERMIT UNDER A STATE FLOOR

On-site wastewater treatment systems follow the same floor-and-ceiling shape as the trade codes. The Water Quality Control Commission sets statewide minimum standards, and then "Every local board of health in the state **shall** develop and adopt detailed rules for on-site wastewater treatment systems within its area of jurisdiction" (25-10-104(2)) — rules that must comply with the state minimums and, where adopted later, be "no less stringent" (25-10-104(4)). Enforcement sits locally: "The primary responsibility for the enforcement of this article ... lies with local public health agencies and local boards of health" (25-10-110). So your septic office is the county or district public health agency, not the building department and not the state.

Statute tells you what the local process must contain — useful, because it is the same everywhere even when the forms differ. Local rules must provide for a written application; "review of the application and inspection of the proposed site"; the studies and reports the agency may require, which is where soil profile and percolation work lives; a determination by "an environmental health specialist or a professional engineer"; issuance by the health officer; and a "final inspection ... **but before the system is placed in use**" (25-10-106(1)(a)-(h)).

"Can I install my own septic?" — a local question

The state statute does not answer it. Licensing of systems contractors is permissive and local: "*The local board of health **may** adopt rules that provide for the licensing of systems contractors*" (25-10-109(1)). Some Colorado public health agencies license installers and allow a homeowner to install on their own property; others require a licensed installer for any system. Ask your local public health agency, in writing, before you price the job either way.

W2: Wastewater

	Item	Date	Notes
☐	Local public health agency identified — the septic permit office for your county or health district Agency: _____		
☐	Site evaluation and soil work completed by whoever the agency accepts (environmental health specialist or professional engineer) By: _____ Date: _____		
☐	OWTS permit issued BEFORE construction of the system Permit #: _____ Date: _____		
☐	Asked whether the agency allows a homeowner to install their own system (25-10-109(1) leaves it to the local board of health), and scheduled the final inspection — the system may not be used until it passes (25-10-106(1)(h))		
☐	If sewer instead: written will-serve from the sanitation district and the tap fee quoted in writing		

3. ACCESS AND ADDRESS — SMALL PERMITS THAT BLOCK BIG ONES

Two approvals that are trivial to obtain and expensive to discover late, because other applications ask for their output. An **assigned address** is what the state permit system, the utility, and the emergency-services database key on — you cannot buy a state electrical permit without a job-site address and directions to it. A **driveway or access permit** comes from whoever owns the road: the county road department for a county road, the municipality for a city street, and the Colorado Department of Transportation where a driveway meets a state highway. Ask early which one owns your frontage; on a rural parcel the answer is not always obvious from the map.

W3: Access, address, and the rest of the land

	Item	Date	Notes
☐	Address assigned by the county or municipal addressing authority Address: _____		
☐	Driveway / access permit obtained from the road authority — county, municipality, or CDOT for a state highway Authority: _____ Permit #: _____		
☐	Zoning, setbacks, and any overlay confirmed in writing — wildland-urban interface, ridgeline, historic, or scenic — plus the floodplain status of every part of the site, and the local floodplain development permit if any of it is in a mapped hazard area		
☐	Easements, covenants, and any HOA architectural review identified — private restrictions bind you even where no public code does — and fire district requirements asked about directly: access width and turnaround, water supply or storage, and any sprinkler requirement		

4A. THE LOCAL BUILDING PERMIT — IF YOUR JURISDICTION REQUIRES ONE

There is no statewide submittal list, because there is no statewide code. Your building department publishes its own, and that list governs. What follows is the shape common to Colorado departments, with the two items Colorado adds to the usual set: **a soils report and an engineered foundation**, which the expansive clays of the Front Range and the snow loads of the high country make near-universal, and **energy-code compliance** under whichever edition the trigger below landed your jurisdiction on.

Good news you can use: draw your own plans

The architects' practice act does not reach houses — "*One-, two-, three-, and four-family dwellings, including accessory buildings commonly associated with those dwellings*" are outside it (C.R.S. 12-120-403(1)(a)) — and the county statute requiring a professional seal defers to that exemption (30-28-205(3)). You may prepare and submit your own drawings. What your department can still require is **engineering** on the structure: a soils report, a foundation designed by a Colorado professional engineer, and stamped structural calculations for the snow load. Ask exactly which sheets need a seal before you draw, not after.

The energy code your jurisdiction landed on

Widely misreported, so here is the actual trigger. A county or municipality that has building codes, or adopts them after July 1, 2022, must also adopt and enforce an energy code (30-28-211(3); 31-15-602(3)). Then: one that **updates any building code** on or after July 1, 2023 and before July 1, 2026 must adopt an energy code at least equivalent to the **2021 IECC plus the model electric ready and solar ready code**; one that updates **on or after July 1, 2026** must reach the **model low energy and carbon code** developed by the Energy Code Board (30-28-211(3.5)(a), (b); 31-15-602(3.5)). Two things guides miss: the duty is triggered by **updating a code, not by a calendar deadline** — a jurisdiction that never updates never moves — and it reaches only jurisdictions that have building codes at all. A **rural county** (population under 30,000) that applied for and was not awarded an energy-code grant may instead adopt one of the three most recent IECC editions (30-28-211(3.5)(c)); municipalities get no such relief. And adopting the wildfire resiliency code alone does not trigger the duty (30-28-211(3.5)(g)).

A1: Before you file

	Item	Date	Notes / who confirmed
☐	Confirmed the jurisdiction requires a building permit at all, and got the adopted code editions and the local amendment list Editions: _____		
☐	Submittal checklist obtained from the department — their list governs, not this one — and the energy-code path settled Energy code: _____ Path: _____		
☐	Owner-builder question answered in writing: may you pull the permit, is an affidavit required, and must you register as a contractor		
☐	Water and wastewater approvals in hand — most departments will not issue without them		

A2: The application package

	Item	Date	Notes
☐	Site plan: property lines, setbacks, building footprint, driveway, easements, well and septic locations with their separation distances, and drainage		
☐	Floor plans, elevations, wall sections, and window and door schedule — yours to draw (12-120-403(1)(a))		

A2: The application package

	Item	Date	Notes
☐	Energy compliance documentation for the adopted energy code		
☐	Colorado Wildfire Resiliency Code compliance if the parcel is in a designated wildland-urban interface area — structure hardening (Class 1 or Class 2) and the site and defensible-space requirements		
☐	Soils / geotechnical report, and a foundation design by a Colorado professional engineer if required Engineer: _____		
☐	Structural design for the site's snow load — confirm the ground snow load figure your department uses, in writing Ground snow load: _____		
☐	Application form completed, and copies of the well permit, OWTS permit, driveway permit, and address assignment attached		
☐	Filed, fee paid, and the plan-review clock noted Filed: _____ Permit #: _____		

4B. THE STATE TRADE PERMITS — THESE EXIST EITHER WAY

Whether or not a building permit exists for your house, the electrical and plumbing installations need permits, and they must be bought **before the work starts**: "*Prior to the commencement of any electrical installation ... shall apply for a permit and pay the required permit fee*" (12-115-120(2)(b)), and the same words for plumbing and gas piping at 12-155-120(1)(c)(I). If your jurisdiction runs its own program you buy them there. Otherwise you buy them from the state, online, and the Division publishes exactly what it will ask you for.

What the state permit system asks for (dpo.colorado.gov, August 2026)

Permit	What you need in front of you
Every permit	The job-site address; directions to the job site including the nearest cross streets ; a valid credit card. Permits bought through the online system are " <i>processed immediately upon payment</i> "; a hard-copy application " <i>may be delayed up to 7 business days.</i> "
Electrical	Square footage of the living space to be wired; the name of the power supplier ; and the cost of materials and labor for the work.

What the state permit system asks for (dpo.colorado.gov, August 2026)

Permit	What you need in front of you
Plumbing (residential)	A fixture count — traps, water hammer arrestors, backflow preventers, water heaters, fuel gas outlets, and fuel gas pressure regulators. Count these off your own plans before you sit down to apply.
Gas piping	A separate application from the plumbing permit — the Division publishes a Gas Piping Permit Application of its own, and the Colorado Fuel Gas Code is a separate adopted code.
Each detached structure	"A <i>separate permit is required for each detached structure on the same property.</i> " Garage, shop, barn, studio — each one is its own permit, clearly named or numbered. Budget for them.

If you hire it out, do NOT buy the permit

The Division's own notice to homeowners is explicit: if you are hiring an electrical or plumbing contractor, "*your contractor is responsible for obtaining the required permit(s)*" and as the homeowner "*you should not continue with the permit application process.*" Buying the permit yourself and then having someone else do the work is not a shortcut — it is the arrangement the statute treats as a violation, and it can leave the work uninsured as well as unlawful. Buy the permit only for work you will actually perform yourself.

B1: State (or local) trade permits

	Item	Date	Notes
☐	Confirmed who issues for ELECTRICAL, and separately for PLUMBING and GAS PIPING — the Division publishes both lists (CO.4) Electrical: _____ Plumbing: _____		
☐	Electrical permit purchased BEFORE any wiring begins (12-115-120(2)(b)) Permit #: _____ Date: _____		
☐	Plumbing permit purchased BEFORE any plumbing begins (12-155-120(1)(c)(I)) Permit #: _____ Date: _____		
☐	Gas piping permit purchased separately if there is fuel gas or propane on the job — and a separate permit for every detached structure, each named or numbered on its own application Permit #: _____ Date: _____		

B1: State (or local) trade permits

	Item	Date	Notes
☐	Permit term: asked for longer than twelve months at application if the build will run long (12-115-120(6)(a); 12-155-120(3)(a)); and the two Homeowner's Guides downloaded from the Division Term: _____		

Sources — every Colorado claim in this document (verified August 2026)

What this document states	Authority
Exempt well: 15 gpm cap; household, fire, stock, one acre of lawn/garden; max three dwellings	C.R.S. 37-92-602(1)(b)
DWR review of a complete well permit application may take up to 49 days	dwr.colorado.gov, Well Permitting
The 35-acre line: under it, household use inside the dwelling only, no irrigation	C.R.S. 37-92-602(3)(b)(II)(A)
Designated basins sit outside the exempt-well article; subdivision wells are judged on cumulative effect	C.R.S. 37-92-602(1)(a), (3)(b)(III)
Statewide OWTS minimums; every local board of health must adopt rules no less stringent; local rules must cover application, site inspection, studies, specialist or PE determination, permit, and a final inspection before use; homeowner installation is a local question	C.R.S. 25-10-104, 25-10-106(1)(a)-(h), 25-10-109(1)
Energy code triggered by ADOPTING OR UPDATING a building code; the 2023 and 2026 tiers; the municipal twin	C.R.S. 30-28-211(3), (3.5); 31-15-602(3), (3.5)
Rural-county carve-out (population under 30,000, grant not awarded); the wildfire resiliency code alone does not trigger the energy-code duty	C.R.S. 30-28-211(3.5)(c), (g)
Electrical, plumbing, and gas piping permits and fees before work commences	C.R.S. 12-115-120(2)(b); 12-155-120(1)(c)(I)
What the state permit system asks for; separate permit per detached structure; contractor buys the permit when you hire out	DPO permits page, dpo.colorado.gov
2025 Colorado Wildfire Resiliency Code applies in designated wildland-urban interface areas	DFPC, dfpc.colorado.gov

Read any C.R.S. section cited above at **leg.colorado.gov** → Laws → Colorado Revised Statutes, which serves the official titles as PDFs. Read any rule cited as a **CCR** number — the State Electrical Board's rules are 3 CCR 710-1, the State Plumbing Board's are 3 CCR 720-1 — in the Code of Colorado Regulations at **sos.state.co.us/CCR**, where the PDF is the official version and every past version is listed with its effective date. Beware third-party statute mirrors: they lag the session laws, and Colorado renumbered its entire professions title in 2019, so older guides cite sections that no longer exist. All statute and rule text in this kit verified August 2026.